

21STCV32534 21STCV32534

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV32534 Hearing Date: September 2, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOSE FLORES, an
individual,

Plaintiff,

vs.

DR. SEHGAL ASHISH, an individual; and
KAISER FOUNDATION HEALTH PLAN, INC, and DOES 1 through 100, inclusive,

Defendants.

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CASE NO.: 21STCV32534

ORDER

DENYING PLAINTIFF'S MOTION TO SET ASIDE JUDGMENT

I.

BACKGROUND

Plaintiff Jose Flores

("Plaintiff") alleged Defendant Dr. Ashish Sehgal ("Dr. Sehgal") sexually assaulted him on June 2, 2009, while administering emergency medical care at a Kaiser Permanente hospital in Panorama City, CA. (See Second Amended Complaint ("SAC"), ¶¶ 16-24.) Plaintiff also brought this action against Dr. Sehgal's employer, Southern California Permanente Medical Group ("SCPMG").

Plaintiff initially served

his Complaint and Summons on Defendant Kaiser Foundation & Health Plan Inc. on September 3, 2021. The clerk of court entered judgment against Kaiser Foundation & Health Plan Inc. on November 4, 2021.

On December 17, 2021,

the Court approved Plaintiff's amendment to his Complaint, correcting Kaiser Foundation & Health Plan Inc.'s name to Defendant Kaiser Foundation Health Plan, Inc. ("Kaiser").

Plaintiff attempted to have default judgment entered against Kaiser several times since initially filing his action on September 2, 2021. As part of that process, on March 22, 2024, Plaintiff dismissed Dr. Sehgal. However, the Court later reinstated Dr. Sehgal as a defendant at Plaintiff's request.

On August 13, 2025, the Court granted Kaiser's Motion for Summary Judgment.

On July 21, 2026, the Court granted Dr. Sehgal and SCPMG's Motion for Summary Judgment.

On July 28, 2026, the Court entered judgment in favor of Kaiser, SCPMG, and Dr. Sehgal.

Plaintiff moves to vacate the Court's July 21, 2026, Order pursuant to Code of Civil Procedure § 663.

II. PROCEDURAL HISTORY

On September 2, 2021, Plaintiff served his Complaint, alleging (1) Sexual Rape; (2) Sexual Battery Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5) Intentional Infliction of Emotional Distress; (6) Professional Negligence (As to Dr. Sehgal); and (7) Professional Negligence (As to Kaiser Permanente).

On November 4, 2021, the clerk of court entered default against "Kaiser Foundation & Health Plan Inc."

On December 17, 2021, Plaintiff amended his Complaint to correct Defendant's name to "Kaiser Foundation Health Plan, Inc."

On October 2, 2023, this matter was transferred to this Court, which has held several hearings addressing various defects in Plaintiff's default judgment package.

On March 22, 2024,
Plaintiff dismissed Dr. Sehgal.

On October 4, 2024, this
Court granted Kaiser's Motion to Quash Service of Summons.

On October 18, 2024,
Plaintiff filed his FAC against Kaiser, alleging (1) Sexual Rape; (2) Sexual
Battery Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5)
Intentional Infliction of Emotional Distress; and (6) Professional
Negligence.

On January 7, 2025, the
Court overruled Kaiser's Demurrer but granted its Motion to Strike.

On January 7, 2025,
Plaintiff filed an Amended Motion for Court Order to File an Amended Pleading
Including Claim for Punitive Damages.

On January 10, 2025,
Defendant filed its Answer to Plaintiff's FAC.

On February 24, 2025,
Plaintiff submitted a Second Amended Complaint without leave of court.

On March 18,
2025, the Court denied Plaintiff's Motion for Leave to File an Amended
Complaint to include punitive damages.

On May 6,
2025, the Court denied Plaintiff's Motion to Vacate the Court's Order Granting
Defendant's Motion to Strike.

On May 21,
2025, Plaintiff designated Doe 1 as Southern California Permanente Medical
Group and Doe 2 as Dr. Ashish Sehgal.

On May 21,
2025, Plaintiff submitted a proposed Second Amended Complaint.

On May 22,

2025, the Court denied Plaintiff's Ex Parte Application for an Order to Amend his Complaint to add Doe Defendants.

On August 8,

2025, the Court granted in part Plaintiff's Motion for Leave to Amend Complaint and allowed him to add Dr. Sehgal back as a defendant to the action but denied his motion as to Southern California Permanente Medical Group ("SCPMG").

On August 8,

2025, the Court also granted Kaiser's motion compelling Plaintiff's further responses to form interrogatories but denied its motion compelling Plaintiff's further responses to special interrogatories.

On August 8,

2025, the Court granted in part Plaintiff's motion compelling Defendant's further responses to requests for admission and special interrogatories but denied it as to form interrogatories and requests for production.

On August 8,

2025, the Court granted Dr. Sehgal's and SCPMG's Motion to Quash.

On August 11,

2025, Plaintiff filed his Second Amended Complaint which added three causes of action and both Dr. Sehgal and Southern California Permanente Medical Group as defendants. Since these amendments are beyond the scope permitted by the Court's order granting him leave to amend, the Court struck this Second Amended Complaint.

On August 13, 2025, the

Court granted Kaiser's Motion for Summary Judgment.

On September 23, 2025,

the Court denied Plaintiff's Motion for Reconsideration of its order granting Kaiser's Motion for Summary Judgment.

On December

23, 2025, the Court granted Plaintiff's Motion for Leave to Amend. Plaintiff filed his SAC the same day, alleging (1) Sexual Rape; (2) Sexual Battery Pursuant to Civil Code § 1708.5; (3) Assault; (4) Battery; (5) Intentional Infliction of

Emotional Distress; and (6) Professional Negligence.

On January 21, 2026, the Court denied Plaintiff's Motion for Leave to File an Amended Pleading Including Claim for Punitive Damages.

On February 13, 2026, the Court granted SCPMG and Plaintiff's stipulation to strike Plaintiff's claims for punitive damages from his SAC.

On April 28, 2026, the Court denied Plaintiff's Motion to Compel Further Responses to Requests for Admission.

On July 21, 2026, the Court granted Dr. Sehgal and SCPMG's Motion for Summary Judgment.

On July 28, 2026, the Court entered judgment in favor of Kaiser, SCPMG, and Dr. Sehgal.

On July 28 and July 31, 2026, Plaintiff filed the instant Motion seeking the same relief and scheduled for separate hearings. Because they seek the same relief, the Court will consider the latter filed motion and take off calendar the duplicative hearing.

On August 20, 2026, Dr. Sehgal and SCPMG filed an Opposition.

On August 21, 2026, Plaintiff filed a Reply.

III.

LEGAL STANDARD

Code of Civil

Procedure section 663[1] states: "A

judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1.

Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.

2.

A judgment or decree not consistent with or not supported by the special verdict.”

“A motion to

vacate lies only where a ‘different judgment’ is compelled by the facts found...

A motion to vacate under section 663 may only be brought when the trial judge draws an incorrect legal conclusion or renders an erroneous judgment upon the facts found by it to exist... In ruling on a motion to vacate the judgment the court cannot in any way change any finding of fact... The motion to vacate under section 663 is speedier and less expensive than an appeal, and is distinguished from a motion for a new trial, to be used when, e.g., the evidence is insufficient to support the findings or verdict.” (Garibotti v. Hinkle (2015) 243 Cal.App.4th 470, 477, cleaned up.)

IV.

ANALYSIS

1.

Page Limit

The Court

will not consider Plaintiff’s Motion after page 15. Rule of Court 3.1113(d) provides that except in a summary judgment or summary adjudication motion, no opening memorandum may exceed 15 pages. Because the Court has previously notified

Plaintiff of the maximum page limit under California Rules of Court, the Court will not consider Plaintiff’s Motion after page 15.

2.

Merits

Plaintiff

moves to vacate the July 21, 2026, Order granting Dr. Sehgal and SCPMG’s (jointly,

“Moving Defendants”) Motion for Summary Judgment and to enter a judgment in favor of Plaintiff. (See Proposed Order.) Plaintiff asserts various facts related to the MSJ and argues Moving Defendants failed to obtain informed consent and that Dr. David Barcay’s expert opinion is irrelevant. (See Mot. at 6:5-15, 8:6-11.) Plaintiff argues Moving Defendants’ material facts are not undisputed or material and that they failed to meet their burden on summary judgment. (See id., at 8:1-13:13, 14:10-14.)

Moving Defendants

argue Plaintiff cannot bring a § 663 motion to reinstate this action for trial. (See Opp. at 2:21-22, citing *Forman v. Knapp Press* (1985) 173 Cal.App.3d 200, 203.) Moving Defendants argue assuming § 663 applied, Plaintiff cannot ask the Court to change findings of fact by arguing the material facts are not undisputed and reasserting his arguments made in opposition to the Motion for Summary Judgment. (See id., at 3:18-20, 4:26-5:3.)

In reply,

Plaintiff argues the Court failed to liberally construe the evidence in ruling on the Motion for Summary Judgment and Moving Defendants failed to show no triable issues exist. (See Reply at 5:14-19, 8:22-9:5.)

Code of Civil

Procedure § 663 is not the proper vehicle for the requested relief. A § 663 motion to vacate may only be used to set aside a judgment based on: (1) a decision by the court (nonjury trial); or (2) a jury’s special verdict. (See Code Civ. Proc. § 663; Weil & Brown, Cal. Practice Guide: Civil Trials and Evidence (The Rutter Group 2019) ¶ 18:488.1.) Additionally, a motion pursuant to section 663 “does not lie to vacate a summary judgment and remit an action for trial” because the latter alternative is not a different judgment. (*Forman*, 173 Cal.App.3d at 203.) Although Plaintiff is not requesting this action be reinstated for trial as in *Forman*, section 663 remains an inappropriate mechanism for Plaintiff’s requested relief because the Court made no findings of fact and there was no jury’s special verdict. (See *Garibotti*, 243 Cal.App.4th at 477.) On a motion for summary judgment the Court does not fact-find or weigh evidence, instead it determines whether triable issues of material fact exist for trial. Accordingly, in ruling on the Motion for Summary Judgment, the Court has not drawn incorrect conclusions of law or rendered an erroneous judgment based on facts found by it. Thus, section 663 is not the proper vehicle for the requested relief.

Thus, the
Court DENIES Plaintiff's Motion to Vacate the July 21, 2026, Order.

V.

CONCLUSION

Based on the
foregoing, the Court DENIES Plaintiff's Motion to Vacate the July 21, 2026
Order. Accordingly, the Court will sign the Proposed Judgment submitted on July
22, 2026.

IT
IS SO ORDERED.

DATED: September 2, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.